CLOSED-END RETAIL MOTOR VEHICLE LEASE AGREEMENT

You, the undersigned Lessee, are leasing the Vehicle described below from the independent dealer (Owner), a Northland Associate, named below. As used in this Agreement, "you" and "your" mean the person(s) (whether one or more) signing this Agreement as Lessee(s). The terms "Lessor," "we," "us" and "our" mean the Owner. The term "Lease" means this Motor Vehicle Lease Agreement and "Vehicle" means the leased motor vehicle described below.

Name-Address Lessor **Time Motor Sales, Inc. 3800 E. Lake Street, Minneapolis, MN 55406** Bus. Ph. **612 724 3631**

Name-Address Lessee **Ahmed Abdirizak Gelle 2736 17th Avenue S Apt. H, Minneapolis, MN 55407**

County **Hennepin** Driver's Lic. # **E5650226271916** State **MN** Res. Ph. **612 723 0488** Cell Ph. _____

Name-Address Co-Lessee **N/A**

County **N/A** Driver's Lic. # **N/A** State **N/A** Res. Ph. **N/A** Cell Ph. **N/A**

Ins. Co **Progressive Insurance** Insurance Agent _____ Ph. _____

LEASE DISCLOSURES **Lessee's E-Mail:** _____

A. DESCRIPTION OF LEASED MOTOR VEHICLE:

Year **2009** Make **Toyota** Model **Camry** Body Style **4dsn** VIN # **4T1BE46K79U374701**

Color **Black** Veh. Lic. # _____ New N/A Used X Odometer Reading **155,739**

B. TRADE-IN VEHICLE DESCRIPTION: Gross Agreed-Upon Value of Trade-In $ **0.00** ***less*** Payoff (Estimated), Prior Credit or Lease Balance on Trade-In $ **0.00**

Year **N/A** Make **N/A** Model **N/A** VIN # **N/A** ***equals*** Net Trade-In Allowance (if less than 0 then enter 0)** $ **0.00**

FEDERAL CONSUMER LEASING ACT DISCLOSURES

Amount Due at Lease Signing or Delivery (itemized below)*		**Other Charges** (not part of your periodic payment)	**Total of Payments** (The amount you will have paid by the end of the Lease)
$_____	Your first _____ periodic payment of $ _____ is due on SIGNING OR DELIVERY, followed by _____ payments of $ _____ due on the _____ of each _____ starting _____. The total of all your periodic payments is $ _____	Disposition fee (if you do not purchase the Vehicle) …… $ **0.00** **N/A** $ **0.00** **N/A** $ **0.00** Total $ **0.00**	$ _____

*Itemization of Amount Due at Lease Signing or Delivery

Amount Due at Lease Signing or Delivery:

Security deposit (refundable) ……	$ **0.00**	Disposition Fee (if you do not purchase the vehicle) ……	$ **0.00**
Capitalized cost reduction ……	$ **0.00**	**N/A**	$ **0.00**
Title fees ……	$ _____	**N/A**	$ **0.00**
Registration fees ……	$ _____	**N/A**	$ **0.00**
First periodic payment ……	$ _____	**N/A**	$ **0.00**
Document preparation fee (not gov. fee)	$ _____	**N/A**	$ **0.00**
Origination Fee (not a document fee)….. (non-refundable)	$ _____	Applicable Taxes ……	$ _____
		Total Amount Due at Lease Signing or Delivery	$ _____

How the Amount Due at Lease Signing or Delivery will be paid:

Net trade-in allowance** ……	$ **0.00**	**N/A**	$ **0.00**
Rebates and noncash credits ……	$ **0.00**	**N/A**	$ **0.00**
Amount to be paid in cash ……	$ _____	**N/A**	$ **0.00**
N/A	$ **0.00**	**N/A**	$ **0.00**
N/A	$ **0.00**	Total	$ _____

Your Periodic Lease Payment is Determined as Shown Below:

Gross capitalized cost. The agreed upon value of the vehicle of ($_____) and any items you pay over the Lease term (such as service contracts, insurance) ($ **0.00**) and (any outstanding prior credit or lease balance $ **0.00**). If you want an itemization of this amount, please check this box [ ] …… $ _____

Capitalized cost reduction. The amount of any net trade-in allowance, rebate, noncash credit, or cash you pay that reduces the gross capitalized cost …… - $ **0.00**

Adjusted capitalized cost. The amount used in calculating your base periodic payment …… = $ _____

Residual value. The value of the vehicle at the end of the Lease used in calculating your base periodic Lease payment. …… - $ _____

Depreciation and amortized amounts. The amount charged for the vehicle's decline in value through normal use and for other items paid over the Lease …… = $ _____

Rent charge. The amount charged in addition to the depreciation and any amortized amounts …… + $ **0.00**

Total of base periodic payments. The depreciation and any amortized amounts, plus the rent charge …… = $ _____

Lease payments. The number of periodic payments in your Lease …… ÷ _____

Base periodic payment …… = $ _____

Periodic sales/use tax ……Rate: _____ %…… + $ _____

N/A …… + $ **0.00**

Total periodic payment …… = $ _____

Early Termination. You may have to pay a substantial charge if this Lease is ended early. The charge may be up to several thousand dollars. The actual charge will depend on when the Lease is terminated. The earlier you end the Lease the greater this charge is likely to be.

Excessive Wear, Use and Excess Mileage. You will be charged for excessive wear and damage based on our standard for normal use (see all pages). You will be charged at quarterly intervals for excess mileage at a charge rate of **20** cents for each excess mile over **1,500** miles per month. **Non-payment of excess mileage charges is a breach of this Lease**. The excess mileage dollars received will be refunded in the event you complete an option to purchase the vehicle. _____ **(Lessee(s) initial)**

Purchase Options: A. At the end of the Lease: You will have an option to purchase the Vehicle at the end of this Lease after all payments have been made, for an amount equal to the **Residual value plus official fees and taxes. B. Early Purchase Option:** You have an option to purchase the Vehicle early for an amount equal to the remaining balance of the **Base Periodic Lease Payments** plus the **Residual value** less any applicable discounts that may apply (if any) plus any other amounts due including **Official fees and taxes**.

Other Important Terms. See all pages of this **Lease**, "**Exhibit A" and all attached "Addenda",** which are incorporated by reference into this Lease as if fully stated herein, for additional information relating to binding arbitration, early termination, purchase options, maintenance responsibilities, warranties, late and default charges, insurance and any security interests, if applicable and other important lease terms making all **"One Single Document/Lease/Agreement"**.

1. **Estimated Total Amount of Official Fees and Taxes Payable During the Lease** …… $ _____

2. **Delinquency Charges.** If you do not pay any periodic payment in full within **5** business days after it is due, you agree to pay us a delinquency charge of $ **10** .00 or **NA** % of the periodic payment (or as otherwise provided or limited by applicable law).

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ADDITIONAL PROVISIONS:

3. Insurance. INSURANCE FOR PHYSICAL DAMAGE AND INSURANCE FOR LIABILITY FOR BODILY INJURY AND PROPERTY DAMAGE CAUSED TO OTHERS IS NOT INCLUDED IN THIS LEASE. You are required to purchase and maintain insurance for the benefit of the public and the Owner. You agree to provide and maintain in force the Required Insurance coverage in (at least) the amount and types specified in this Lease. _____ **(Lessee(s) initial)**

4. Maintenance. During the Lease, you will be solely responsible for maintaining, servicing and repairing the Vehicle to keep it in good condition and for payment of all maintenance, service, repair and operating expenses, including gas, oil and filters. _____ **(Lessee(s) initial)**

5. Acknowledgement of Vehicle Condition. By signing this Lease, you acknowledge that you are receiving the Vehicle in good operating condition and all equipment is functional, except as expressly noted on the attached Vehicle Inspection Sheet. _____ **(Lessee(s) initial)**

6. Right of return. You have the right to return the vehicle, and receive a refund of any payments made if your credit application is not approved, unless non-approval results from an incomplete application or from incorrect information that you have provided. Also see Scheduled Lease Term; Your Early Termination Rights.

7. WARRANTIES: The Leased vehicle is subject to the following express or implied warranties: **NONE** unless at the time the lessee acquires ownership of the property, any part of a manufacturer's warranty covering the Leased property exists, such warranty will be transferred to the lessee if allowed by the terms of the warranty. In the absence of a written undertaking by Owner, the Vehicle is delivered "as is, with all faults." You are not required to purchase a service contract or extended warranty as a condition of this Lease.

8. Vehicle Location. You agree that you will store/garage the Vehicle at your address stated on page 1 of this Lease or at such other address to which you and we agree upon in writing. Such location shall not be changed without providing **at least 7 days prior written notice** of the change to Lessor and we acknowledge in writing. You will breach this agreement, giving the Lessor the right to immediate possession (or as otherwise provided or limited by applicable law) of the Vehicle if this Section is not followed. Also see **Prohibited Use**.

9. REQUIRED INSURANCE. The Owner has no responsibility for insuring the Vehicle, or as to any substitute vehicle provided by or on behalf of Owner. You will provide, at least, the following insurance coverage **("REQUIRED INSURANCE")** on the vehicle, at all times during the term of this Lease, including any extensions or renewals: **LIABILITY, COLLISION and COMPREHENSIVE** insurance coverage (including fire and theft coverage) must be at the minimum or greater amount set forth in the applicable state law for leased vehicles with a COLLISION and COMPREHENSIVE deductible not to exceed **$500.00**. You agree to provide the insurance at your own expense with a duly licensed insurance company of your choice who is acceptable to us and may be provided through existing policies that you own or control. You also agree to name us, or our assignee, as loss payee and additional insureds. The insurance company must send notices to both the additional insured and the loss payee providing **at least 10 days advance notice** to us of any cancellation or other material change in coverage. At our request, you will promptly provide us with written proof of insurance. You will promptly contact us in writing if any of the insurance provider information changes. All accidents or collisions/comprehensive events must be immediately reported to and will be coordinated by Owner, or this Lease is in default. You appoint us, through our appointed officer or employee, as your attorney in fact, to endorse your name on any check we receive for insurance proceeds. This power of attorney is coupled with any interest, and is irrevocable until all obligations you owe under this Lease are paid in full. You (Lessee(s)) are responsible for any loss amount your insurance company does not pay including your deductible.

NOTICE: Liability insurance coverage for bodily injury, property damage and motor vehicle damage caused to others is not included in this Lease.

NOTICE: The Lease is IMMEDIATELY in DEFAULT and the Vehicle is subject to IMMEDIATE RECOVERY, WITHOUT NOTICE if the required insurance is not IN-FORCE AT ALL TIMES during the term of this Lease (or as otherwise provided or limited by applicable law). _____ **(Lessee(s) initial)**

10. Indemnity/Security Deposit. To the fullest extent permitted by law, you agree to indemnify us and hold us and our successors and assignees, as the case may be, harmless and free from all liability, claims, losses, demands, damages of all kinds, expenses (including reasonable attorney's fees and costs incurred for the enforcement of this agreement and/or for the collection of any due amount), fines and penalties we suffer or incur resulting from the operation, use, condition, maintenance or recovery of the Vehicle. You agree to pay and hold us harmless for all official fees and taxes relating to the titling, registration, testing or inspection of the Vehicle during the Lease and to keep the Vehicle free from all fines, liens and encumbrances. No part of your security deposit will be repaid until the Vehicle has been returned to the Lessor, unless you purchase the Vehicle in accordance with the purchase option described in this Lease. We may apply the security deposit to payment of any amount due us at the termination or expiration of this Lease, including (without limitation) damage, excess wear and use and excess mileage charges.

11. THIS IS A TRUE LEASE, NOT A SALE. OWNERSHIP/SECURITY INTEREST: WE OWN AND RETAIN TITLE TO THE VEHICLE. As the Lessee of the vehicle YOU ACQUIRE NO OWNERSHIP, WHETHER LEGAL OR EQUITABLE, unless and until you exercise a purchase option contained in this Lease. To secure performance of your Obligations under this Lease, we reserve a security interest in the entire Vehicle, together with all accessories and additions, including replacements.

12. MAINTENANCE, DAMAGE, REPAIRS, LOSS, DESTRUCTION, ALTERATIONS, MODIFICATIONS ADDITIONS, AND REMOVALS: The Lessee agrees to maintain the Property in good working order. Any and all maintenance or repairs to the Property must be performed by the Lessee at Lessee's sole expense. The Owner will not be responsible for any costs of repairs performed by Lessee or at its request even though Owner retains title to the Property. You are also responsible for any damage, repairs, loss, destruction, seizure or theft of the Vehicle during this Lease. You will notify us promptly of any such damage, loss, destruction, seizure or theft. If we determine that any damage to the Vehicle is reasonably repairable, you will have all damage and repairs to the vehicle promptly repaired at your expense (after receiving prior approval from us as to the repair facility, work to be done and materials/methods to be used). All vehicle alterations/modifications/additions/removals, other than provided for elsewhere in this Agreement, must have prior written approval by Owner. This includes but not limited to items like: body decorations, lifting or lowering of body, changing of sound systems, wheels and tires, etc.

13. DEFINITION OF DEFAULT; OUR RIGHTS IN THE EVENT OF DEFAULT. A. You will be in "**DEFAULT**" if any of the following occurs: (1) you do not make your periodic payment on or before its due date; (2) **YOU DO NOT KEEP IN FORCE THE INSURANCE COVERAGE THIS LEASE REQUIRES (see REQUIRED INSURANCE);** (3) **YOU COMMENCE BANKRUPTCY, INSOLVENCY OR RECEIVERSHIP PROCEEDINGS OR ONE IS COMMENCED AGAINST YOU;** (4) any information in your credit application or that of a guarantor of this Lease is false or misleading; (5) you do not promptly or properly perform any promise or agreement under this Lease; (6) the Vehicle is lost, damaged, stolen, abandoned, confiscated by a governmental authority or subjected to undue peril and the event is not covered by insurance; or (7) you commit any other act that constitutes a default under applicable law or this Lease. **B.** In the event of Default, Owner can, at its option: (1) take steps to perform your obligation that gave rise to the Default (in which case you agree to pay all our costs and expenses in so doing immediately on our demand); or (2) immediately terminate this Lease and do any or all of the following after giving due notice; (i) sue you for damages and to recover the Vehicle; (ii) take the Vehicle from you by any method or manner permitted by law (and if there is any personal property in the Vehicle, we will store it at your expense or dispose of it as required by applicable law); (iii) calculate your liability on an early termination basis, in which case you agree to pay immediately the amount of liability on our demand; (iv) pursue any other remedy permitted by law. **C.** If we elect to terminate this Lease because you are in Default, you agree to pay us any Lease payments that are already due to us plus any other amounts owing under this Lease, whether as a result of the default or as otherwise provided or limited by applicable law. _____ **(Lessee(s) initial)**

14. Lease Term or Lease Period. The Lease Term "**Term**" or Lease Period "**Period**" **is from periodic payment to periodic payment, which shall be no longer than month to month.**

15. Early Termination Rights. A. You may voluntarily terminate this Lease, without penalty, before the end of its Term, if you return the Vehicle to us, in good condition, undamaged, and pay all amounts due under the Lease through the date of termination including, without limitation, outstanding payments and excess mileage charges. B. If the Lease is terminated early because of the total loss or destruction of the Vehicle, and you have maintained the Required Insurance within this Lease, there will be an insurance settlement. In that case, (1) we will receive all the proceeds of any insurance required under this Lease and from any other person on account of the total loss or destruction of the Vehicle; (2) you will pay us all amounts past due under this Lease as of the date of our receipt of such proceeds; and (3) you pay us the amount of the applicable insurance deductible. **C.** If this Lease is terminated early, because of the total loss, or destruction of the Vehicle, and you have not maintained the Required Insurance within this Lease, you agree to pay an amount equal to the remaining balance of the Base Periodic Payments, Residual Value and any amounts outstanding under the Lease less the reasonable value of the salvage vehicle, unless paid by insurance. **D.** If this Lease is terminated early because you exercise the purchase option as stated within this Lease and you have kept your agreements, you will owe us only the purchase option price calculated as shown within this Lease.

SEE ALL PAGES FOR OTHER IMPORTANT AGREEMENTS _____ **(Lessee(s) initial)**

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ADDITIONAL PROVISIONS:

16. Return of Vehicle at End of Lease Term. Unless you buy the Vehicle, you will return the Vehicle to us at the address stated for the Owner/Lessor within this Lease or to such other reasonable place we tell you.

17. Standards for Wear and Use. When you return the Vehicle to us, it must be in good working order and condition and not subject to "excessive wear and damage." "**Excessive wear and damage**" includes, but not limited to: (1) glass that is damaged or broken or that has been tinted; (2) damaged body, fenders, metal work, lights, trim or paint (3) missing equipment that was in the Vehicle when delivered and has not been replaced with equipment of equal quality and design; (4) missing wheel covers, jack or wheel wrench; (5) missing or unsafe wheels or tires (including spare); (6) any tire with less than 1/8 inch of tread remaining at the shallowest point; (7) torn, damaged or stained dash, floor covers, seats, headrests, upholstery, interior work or trunk liners; (8) damage or other condition that makes the Vehicle unsafe or unlawful to operate; (9) any mechanical damage or other condition that causes the Vehicle to operate in a noisy, rough or improper manner; and (10) any other damage not covered by insurance. You agree to pay the cost of all repairs needed because of excessive wear and damage and to put the Vehicle in good working order and condition.

18. Assignment. A. This Lease may be sold, transferred, and assigned by us without restriction, in which case our assignee will have the same rights and responsibilities as we have under this Lease. **B. YOU DO NOT HAVE ANY RIGHT TO ASSIGN, SUBLEASE OR TRANSFER THIS LEASE AND ANY ASSIGNMENT OR OTHER TRANSFER OF YOUR INTEREST UNDER THIS LEASE OR IN THE VEHICLE, WHETHER VOLUNTARY OR INVOLUNTARY, IS STRICTLY PROHIBITED WITHOUT OUR PRIOR WRITTEN CONSENT.**

19. Prohibited Use. You agree that you will not: (1) use or permit the use of the Vehicle for any illegal purpose or in violation of any law; (2) use or permit the use of the Vehicle for any improper purpose, including use that exceeds the Vehicle manufacturer's recommendations or specifications; (3) use or permit the use of the Vehicle for hire or any other commercial purposes; (4) use or permit the use of the Vehicle outside of the United States at any time or (5) use or permit the use of the Vehicle outside of the State in which you have agreed it will be stored or garaged for **more than 7 consecutive days** unless we consent in writing. Such location shall not be changed without providing **at least 7 days prior written notice** of the change to Owner/Lessor and we acknowledge in writing. **You will breach this agreement, giving the Owner the right to immediate recovery and possession of the Vehicle if this Section is not strictly followed (or as otherwise provided or limited by applicable law)**.

20. Exercise of Purchase Options. Your purchase of the Vehicle either during or at the end of the Lease will be on an "AS IS" basis. In addition to paying us the purchase option price, you will be responsible for payment of any official fees and taxes relating to the purchase, and you agree to sign and deliver any purchase documents that we reasonably require.

21. Odometer Disclosure. When you return the Vehicle to us upon the termination or expiration of this Lease, you will be required to disclose the Vehicle's mileage in accordance with applicable federal and state laws. You authorize us to sign your name on the odometer disclosure statement if you have not executed one for us as requested.

22. Inspection. We reserve the right to inspect the Vehicle at any reasonable time and place and you agree to provide us with reasonable access to the Vehicle for this purpose.

23. Advances on Your Behalf. If you fail to perform any duty with respect to preserving our interest in or insuring the Vehicle, we may pay for the performance of such duties on your behalf and the amount so paid by us will be added to the unpaid balance of your obligations under this Lease, provided that we have made the payments in good faith and in a commercially reasonable manner and we have given you written notice of the nonperformance and a reasonable opportunity after such notice to perform.

24. General. A. Lessee(s) give us permission (direct expressed consent, clear, definite and unequivocal) to contact or communicate with Lessee(s) using any communication method (or as otherwise provided or limited by applicable law). B. Lessee(s) is liable for immediate payment of all parking tickets, tolls, fines for toll evasion, and all other fines (or as otherwise provided or limited by applicable law). C. Unless the law otherwise provides, this Lease contains the entire agreement between you and us with regard to the Vehicle and supersedes and replaces all prior discussions, understandings and agreements. **This Lease, "Exhibit A" and all attached "Addenda", which are incorporated by reference into this Lease making all "One Single Document/Lease/Agreement"** may not be amended, modified, varied, or otherwise altered or extended, nor the agreements or conditions hereof waived, except by a writing signed by an authorized representative of the party against whom such amendment, modification, variation, alteration, extension or waiver is sought to be enforced. No act or omission by us, including specifically any failure to exercise any right, remedy or recourse, however often, shall be deemed to be a waiver or release of any right, remedy or recourse by us. A waiver or release with reference to any one event shall not be construed as continuing, as a bar to, or as a waiver or release of, any subsequent right, remedy or recourse in the future. Further, no acceptance of any consideration or performance less than the full due amount shall be deemed to be an accord and satisfaction, settlement or release, unless we expressly agree, in writing.

NOTICE TO LESSEE AND CO-LESSEE
THIS IS A TRUE LEASE AGREEMENT—READ BEFORE SIGNING

PLEASE REVIEW THESE MATTERS CAREFULLY AND SEEK INDEPENDENT PROFESSIONAL ADVICE IF YOU HAVE ANY QUESTIONS CONCERNING THIS TRANSACTION. BY SIGNING BELOW, YOU ACKNOWLEDGE THAT:

A. THIS IS A CLOSED-END RETAIL MOTOR VEHICLE LEASE AGREEMENT.
NOTE: THIS IS A TRUE LEASE, NOT A PURCHASE AGREEMENT.

B. YOU HAVE NO OWNERSHIP RIGHTS TO THE VEHICLE UNLESS AND UNTIL YOU EXERCISE AN OPTION TO PURCHASE THE VEHICLE AS CONTAINED IN THIS LEASE.

C. YOU MAY PREPAY THE UNPAID BALANCE AT ANY TIME WITHOUT PENALTY.

D. THERE ARE NO VERBAL OR WRITTEN TERMS OR CONDITIONS OTHER THAN THOSE IN THIS LEASE, "EXHIBIT A" AND ALL ATTACHED "ADDENDA" MAKING THIS ALL "ONE SINGLE DOCUMENT/LEASE/AGREEMENT".

E. DO NOT SIGN THIS LEASE, "EXHIBIT A" AND ALL ATTACHED "ADDENDA" BEFORE YOU READ AND INITIAL ALL PAGES OR IF ANY SECTION IS NOT COMPLETED, OR CONTAINS ANY BLANK SPACES.

F. YOU ARE ENTITLED TO AND ACKNOWLEDGE HAVING RECEIVED A COMPLETED EXACT COPY OF THIS "ONE SINGLE DOCUMENT/LEASE/AGREEMENT" INCLUDING ANY CREDIT STATEMENT WHEN YOU SIGN.

G. THIS LEASE, "EXHIBIT A" AND ALL ATTACHED "ADDENDA", ARE INCORPORATED BY REFERENCE INTO THIS LEASE MAKING THIS ALL "ONE SINGLE DOCUMENT/LEASE/AGREEMENT".

LESSEE _____	LESSOR **Time Motor Sales, Inc**
PRINT NAME _____	BY _____
CO-LESSEE **N/A**	PRINT NAME **Eli Aswan**
PRINT NAME **N/A**	TITLE **Sales Manager** DATE _____

SEE ALL PAGES FOR OTHER IMPORTANT AGREEMENTS

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